



SKELETAL AGREEMENT RELATIVE TO TEMPORARY AGENCY WORK

The employee and employer mentioned below have agreed on the following terms of employment, which shall be observed in **fixed-term** employment relationships to be agreed on separately between the undersigned. The signing of this agreement alone does not constitute an employment contract, but said contract will be constituted only after the contracting parties agree on the terms of an assignment-specific employment contract. Together with the assignment-specific terms of employment to be agreed on separately, the general terms agreed in this agreement constitute the terms of the employment relationship.

Employer
StaffPoint Smarte Oy
Address
Ruoholahdenkatu 14
City
Helsinki
Business ID / VAT number
2934992-7

Employee
Mujitha Manorathna Nawarathna Mudiyansele
Address
Magneettikatu 1a 15, Espoo
City
Espoo
Social security number
100493-3233
Bank account number
FI49 5721 1520 4406 65
Email
mujitha.m3@gmail.com

If, with the employee's consent, the employer (private employment agency) assigns the employee for use by another employer (user enterprise), the right to direct and supervise the work will be transferred to the user enterprise together with the obligations stipulated for the employer and directly related to the performance of the work and its arrangement. The employee must also observe the instructions and directions issued by the private employment agency and the user enterprise within its competence for the performance of work.

By committing to this contract, the employee is obliged to also temporarily perform other tasks assigned by the employer or the user enterprise.

'User enterprise' refers to an enterprise that orders temporary agency workers and in whose facilities the work is generally performed. 'Contract' refers to an agreement by which the user enterprise hires the employee into its service from the private employment agency. 'Assignment' refers to an individual, fixed-term employment contract.

1. The employee gives his or her consent to performing temporary agency work under the terms agreed on in this agreement, unless otherwise agreed in the case in hand. The detailed terms of the employment contract, such as those on pay, working hours, start date and the duration or estimated duration of the work, probation period, work tasks, place where the work is to be performed and collective agreement, shall be agreed on separately for each assignment, unless they are bindingly agreed on in this agreement. In addition, the private employment agency shall inform the employee of the duration of the contract entered with the user enterprise, as well as of the reason behind the contract.
2. Each fixed term contract shall be agreed separately. Such a contract can be concluded in writing, electronically, or also verbally, if necessary. In each case, the employee has the right to reject the employment contract offered. When a working shift/assignment has been bindingly confirmed, it obliges both contracting parties.

An assignment-specific/contract-specific fixed term employment contract is based on a sudden need by the user enterprise for additional employees, unless otherwise agreed specifically for the assignment. In addition, the private employment agency makes an assessment that it has no permanent need for employees after an individual assignment contract terminates.
3. If the employee does not arrive at the agreed workplace or leaves the agreed fixed-term employment

relationship before the end of the agreed period, he or she is obliged to compensate for the damage thus caused. Such compensation may be deducted in accordance with the Employment Contracts Act, from the pay payable to the employee.

4. A probation period shall be agreed on separately.
5. The collective agreement applied to assignments shall be MaRaVa unless otherwise agreed specifically for the assignment. In addition, all applicable laws and decrees, company rules and regulations and other internal guidelines and rules shall be observed.
6. The employee's annual holiday shall be determined in accordance with the Annual Holidays Act and/or the applicable collective agreement.
7. Working hours shall be agreed on separately for each assignment. Any overtime hours to be performed shall be agreed on separately between the employer and the user enterprise, unless otherwise agreed.
8. During the employment relationship, the employee may not accept any pay directly from the user enterprise, for work performed at the user enterprise. The employee shall inform the employer if the user enterprise wishes to employ him or her during the employment relationship or within six (6) months after the end of the employment relationship.
9. Subject to the penalty stipulated in the applicable legislation, the employee may not utilize or divulge to third parties the employer's and the user enterprise's trade, business or other secrets. This also applies to the period after the termination of the employment relationship.
10. The employee has submitted information on his or her competence and other personal information, which the employee affirms by signature.
11. The employee's pay shall be paid in accordance with the provisions of the applicable collective agreement, after the employer has received a list of the hours worked, as confirmed by the employee's supervisor at the user enterprise. The employee's pay shall be paid according to the practice separately agreed on. The employee commits to comply with the deadlines given by the employer to report hours and pay materials in order to secure that the payments are up-to-date. Upon the termination of each fixed-term employment relationship, the final pay and any holiday compensation shall be paid on the company's normal pay day, on which the pay would be paid if the employment relationship had not ended.
12. Employee is in charge of getting a health certification or a statement of qualification before the employment, if it is required.
13. The employee pledges to keep in secret and to treat carefully personal data that they have obtained on duty. In addition, the employee agrees to follow data protection regulations and national data protection legislations, participate into a data protection training organized by the employer and to get to know and familiarize the documentations and instructions concerning data protection given by the employer.
14. After the end of the employment relationship, the employee is obliged to return all property of the employer/user enterprise that has been issued to him or her, such as keys, working clothes and implements. Otherwise, their value may be deducted from the payoff, in accordance with the Employment Contracts Act.
15. The employee is obliged to inform the employer if he or she, during the employment relationship, works in another country in addition to working in Finland. The employee has this obligation both in the beginning of and, should his or her situation change, during the employment relationship, to enable the employer to fulfill its statutory obligations in the correct manner.

Additionally agreeded

Signatures

Employee

Magneettikatu 1A 15, Espoo, 02330
23/02/2023 Mujitha Manorathna Navarathna
Mudiyanselage

Employer

Helsinki 23/02/2023 Ida Juhamo



RTsquared Oy

Agreement – Service Supplier (Driver/Deliverer)

1. Parties and contact persons

RTsquared Oy
Y-tunnus: 3424172-6

Mujitha Manorathna Nawarathna
Mudiyanselage
Henkilötunnus: 100493-3233

Contact Person:
Ruwan Wanniarachchi
Tel.: +358 449843288
Email: rtsquaredoy@gmail.com
“Assignor”

Address: Ida Aalbergin tie 1a E 149, 00400,
Helsinki
Tel.: +358415747401
Email: mujitha.m3@gmail.com
“Assignee”

Notes: This contract is a mutual agreement between the “Assignor” and the “Assignee” with regards to subjected delivery assignments stated in section 2. Neither employment relationship is formed between the parties, nor the assignee is restricted to practicing any other businesses unless competing. “Truster Works Oy” provides the invoicing services, and which is not a signatory party to this agreement.

2. Assignment

Assignments concern the execution of the following tasks:

- Postal letters, magazines, and packets distribution services.
- ☒ Assignments are being assigned according to the availability of the delivery products, and as prior-agreed with the assignor on the delivery area.
- ☐ The job description is attached to the agreement.
- ☒ Responsibilities are defined in the agreement.

3. Contract period.

- ☐ For now, with a notice period of _____ Days.
- ☐ Until ____/____/____
- ☒ Until the assignment defined in section 2 and the responsibilities defined in the section 7 are being completed.

4. Pricing and Payments

At the time of signing the contract, pricing has been agreed as follows:

- _10_ Euros per hour (Possible Increments based on performance with minimum 02 months continuous work + VAT _XX_% (VAT is subjected to change as per ALV regulations)
* Calculations as per the system generated time durations for the delivery of the assignment.
- Travel and material allowance: _Agreeing up on the fuel costs _ per kilometer + VAT.
*Calculations as per the running distance for the delivery FROM/TO the pickup point.
- Invoicing two times a month. The term of payment is 14 days net.
- Invoicing is being done for the payment through the invoicing service of Truster Works Oy – Business ID: 3131729-7.

5. Expenses

- The expenses are included in the fee agreed in section 4.
☒ YES ☐ NO
- Reimbursement of travel and material expenses included in the allowance agreed in section 4.
☒ YES ☐ NO

6. Termination of Contract

6.1 Dismissal: The parties have the right to terminate the contract both sides, in compliance with the notice period of,

- ☐ 7 Days ☒ 14 Days ☐ 30 Days.

6.2 Termination: If the parties discover a material or responsibility breach of this contract, any damage, violation, misuse or error in operating procedures, the offending party must be notified immediately in writing. The offending party has __3__ days to correct the error or violation. Failure to do so can be concluded the contract with a termination immediately on a written notice of the party. In an assignee's event of unconfirmed absence, Negligence, loss of communication, or any other violation

against the work ethics including its confidentiality, quality, punctuality, responsibility and the accountability, will result immediate Termination.

7. Responsibility

7.1 Assignor Responsibilities:

- Shall provide the necessary training on identification of the training need and content requirement of the new assignee.
- Support over the mobile phone or through an agreed digital communication channel, during working hours.
- Provide required information and access to the delivery guides.
- Make arrangement for Invoicing and approving the payments for the assignee upon the agreed payment terms in the section 4.
- Assignments are only applicable and been assigned up on the availability of deliveries and delivery routes and depending on the assignee's performances.

7.2 Assignee Responsibilities:

- Ensure all the deliveries assigned are distributed at the given time and being stamped the delivery guide web application, for start/end times along with the deviation/non-delivery updates properly.
- Work during the allowed hours 07:00 to 20:00 and in case of a requirement, work at night and during weekends, under the instructions and fully awareness of the Assignor.
- Ensure the security and safety of the deliveries, support material and apartment keys, in order to avoid any losses, damage or errors.
- Distribution of deliveries in accordance with the agreed-upon process, speed, quality criteria and the applicable regulatory and safety provisions in its own geographical area.
- Provide necessary arrangements and substitutions to cover up the fixed assignment tasks, in advance, in case of unavailability.
- Provide necessary feedback through the delivery guide and any external communication channel agreed-upon. Ex: Door Keys/Code Updates, Address corrections, Delivery point and site matters, etc.
- Bearing the responsibility for the pickup box keys, provided by the Assignor and sharing, exchanging, handover and returning due to a raised requirement up-on a notice given by the Assignor.

8. Other Terms and Conditions

A Party shall be liable to compensate the other Party for any loss or damage caused by its actions in breach of this Agreement, or the operating procedures, including direct and indirect loss and damage if such loss or damage is caused by the Party willfully or through gross negligence.

The Assignor shall provide the Assignee with address data for the area based on which the work shall be carried out. Any and all data provided under and including this Agreement, and the outcomes resulting from this Agreement, Products, Procedures, Material and the properties including office premises are confidential information that neither to be disclosed to any third party strictly nor involvement of a third-party during the work.

The Assignee also has the right to use any other data available for the work. The Assignee is responsible for ensuring that the Assignee has the necessary rights to any such other data.

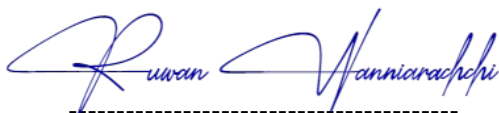
The Assignee is responsible for ensuring the safety of themselves, third parties and assets, meeting during the operations, such as residents, pedestrians, other vehicles, surrounding properties, signboards, etc. Parking during the delivery operations is under the parking regulations governed by the respective places, thus the Assignee is responsible for deciding the parking place as per parking rules, showing the necessary signals, returning within the allowed time and removing the car from the respective parking on-time. The Assignee is obliged by this agreement to keep the information, document, contact details, operational & procedural matters and anything else related to the work, including work relationships and the matters mentioned in this agreement itself to be kept CONFIDENTIAL.

9. Signatures

The agreement may be executed in two (2) counterparts, one to remain with each party.

Place and date:

Espoo, Thursday, 7 August 2025



Assignor
Ruwan Wanniarachchi
RTsquared Oy



Assignee
Mujitha Manorathna Nawarathna
Mudiyanselage



Courier Partner Service Agreement

Lähetikumppanin Toimeksiantosopimus

The following parties referred to jointly the “Parties” and individually a “Party” have entered into this Courier Partner service agreement (the “Agreement”) / Seuraavat osapuolet, jäljempänä yhdessä “Osapuolet” ja yksin “Osapuoli”, ovat solmineet tämän Lähetikumppanin toimeksiantosopimuksen (jäljempänä “Sopimus”):

1) **Wolt**

Legal entity name: / Yhtiön nimi:	Business ID: / Y-tunnus:	Address: / Osoite:
Wolt Enterprises Oy	2646674-9	Pohjoinen Rautatiekatu 21, 00100 Helsinki

2) **the Courier Partner / Lähetikumppani**

Company's registered name: / Yhtiön virallinen nimi: MUJITHA MANORATHNA NAWARATHNA MUDIYANSELAGE	Business ID: / Y-tunnus: 3427601-3
Address of company / Yhtiön osoite: Ida Aalbergin tie 1a B 53 00400 HELSINKI	
Contact person name and title: / Yhteyshenkilön nimi ja asema: Mujitha Manorathna, Owner	Contact person email: / Yhteyshenkilön sähköposti: mujitha.m3@gmail.com
Delivery fees and invoicing schedule: - Up to date delivery fees as updated by Wolt from time to time can be found in the Delivery Fees document. - The delivery fee forms the entire compensation for the delivery services and the Courier Partner is not entitled to any cost compensation, benefits, or reimbursement of traveling or other expenses. - Invoicing of the accumulated delivery fees takes place twice (2) a month through self-billing invoices created by Wolt in the name and on behalf of the Courier Partner. The fee is exclusive of VAT which shall be added to the invoice to the extent applicable. - Delivery fees are paid to the bank account provided by the Courier Partner. If the bank account is not in the country where delivery services are provided, the Courier Partner shall bear all costs related to payments abroad.	Kuljetuspalkkiot ja laskutusaikataulu: - Kulloinkin vomassa olevat kuljetuspalkkiot, joita Wolt päivittää ajoittain, löytyvät Kuljetuspalkkiot dokumentista. - Kuljetuspalkkio muodostaa Lähetikumppanille kuljetustoimeksiannosta maksettavan kokonaispalkkion, eikä Lähetikumppanilla ole oikeutta kustannusten korvauksiin, etuihin tai matka- tai muiden kulujen korvaukseen. - Kertyneiden kuljetuspalkkioiden laskutus tapahtuu kaksi (2) kertaa kuukaudessa itselaskutuslaskuilla, jotka Wolt laatii Lähetikumppanin nimissä ja puolesta. Palkkio ei sisällä arvonlisäveroa, joka lisätään laskuun soveltuvien osien. - Kuljetuspalkkiot maksetaan Lähetikumppanin ilmoittamalle pankkitilille. Mikäli pankkitili ei ole maassa, jossa kuljetuspalveluita tarjotaan, vastaa Lähetikumppani kaikista ulkomaille suoritettavista maksuista aiheutuvista kustannuksista.

The Courier Partner commits to inform Wolt in writing of any changes to the above details. / Lähetikumppani sitoutuu ilmoittamaan Woltille kirjallisesti kaikista edellä mainituissa tiedoissa tapahtuvista muutoksista.

DEFINITIONS “Platform” means both Wolt’s smartphone application and web service which users of the platform use for ordering goods from Wolt’s merchant partners. “User” means a natural or legal person ordering Wolt merchant partners’ products through the Platform. “Courier Partner” means a natural or legal person performing delivery services through the Platform. “Delivery Service” means courier services performed by Courier Partners through the Platform, i.e. delivery of goods (incl. food products, groceries) ordered from Wolt’s merchant partners to the Users. “Courier Partner App” means Wolt’s smartphone application used by the Courier Partners to receive and accept/reject offers for Delivery Services.	MÄÄRITELMÄT “Alusta” tarkoittaa sekä Woltin älypuhelinsovellusta että verkkopalvelua, joilla alustan käyttäjät tilaavat tavaroita Woltin kauppiaskumppaneilta. “Käyttäjä” tarkoittaa luonnollista henkilöä tai oikeushenkilöä, joka tilaa Woltin kauppiaskumppaneiden tuotteita Alustan kautta. “Lähettilumppani” tarkoittaa luonnollista henkilöä tai oikeushenkilöä, joka suorittaa kuljetustoimeksiantoja Alustan kautta. “Kuljetustoimeksianto” tarkoittaa Lähettilumppaneiden Alustan kautta suorittamia kuljetuspalveluita eli Woltin kauppiaskumppaneilta tilattujen tavaroiden (mukaan lukien elintarvikkeet, päivittäistavarat) toimittamista Käyttäjille. “Lähettilumppani-sovellus” tarkoittaa Woltin älypuhelinsovellusta, jota Lähettilumppanit käyttävät vastaanottamaan ja hyväksymään/hylkäämään tarjottavia Kuljetustoimeksiannoista.
1. General principles applied to Delivery Service 1.1. The Courier Partner performs Delivery Services on the Platform independently by using its own methods, devices, and equipment. 1.2. There is no employment relationship between Wolt and the Courier Partner, and the Courier Partner shall be considered as an independent contractor for the purposes of this Agreement. 1.3. The Courier Partner shall be solely responsible for all tax and reporting obligations associated with the performance of Delivery Services. Further, the Courier Partner is liable for pension and social security insurances in accordance with applicable laws. 1.4. The Courier Partner is not guaranteed any Delivery Services through the Platform. Respectively the Courier Partner has no obligation to perform Delivery Services and is free to reject offers of Delivery Services, even after having initially accepted them.	1. Kuljetustoimeksiantoja koskevat yleiset periaatteet 1.1. Lähettilumppani suorittaa Kuljetustoimeksiantoja Alustalla itsenäisesti käyttäen omia menetelmiään, laitteitaan ja varusteitaan. 1.2. Woltin ja Lähettilumppanin välillä ei ole työsuhdetta ja Lähettilumppania pidetään itsenäisenä toimeksisaajana tätä Sopimusta sovellettaessa. 1.3. Lähettilumppani vastaa itse kaikista Kuljetustoimeksiannoista aiheutuvista vero- ja ilmoitusvelvoitteistaan. Lisäksi hän on velvollinen huolehtimaan eläke- ja sosiaaliturvavakuutuksistaan kulloinkin sovellettavan lainsäädännön mukaan. 1.4. Lähettilumppanille ei taata Kuljetustoimeksiantoja Alustan kautta. Vastaavasti Lähettilumppanilla ei ole velvollisuutta suorittaa Kuljetustoimeksiantoja ja hän voi vapaasti hylätä hänelle tarjotut Kuljetustoimeksiannot, vaikka olisikin aluksi ne hyväksynyt.

1.5. The Courier Partner is free to provide delivery services to third parties (including possible competitors of Wolt) and to conduct any other business. 1.6. The Courier Partner is not obliged to perform Delivery Services personally but is free to engage substitutes to perform those on its behalf. The Courier Partner shall inform Wolt in advance of the use of substitutes to enable Wolt to comply with its legal obligations.	1.5. Lähettikumppani voi vapaasti tarjota kuljetuspalveluita kolmansille osapuolille (mukaan lukien Woltin mahdolliset kilpailijat) ja harjoittaa mitä tahansa muuta liiketoimintaa. 1.6. Lähettikumppani ei ole velvollinen suorittamaan Kuljetustoimeksiantoja henkilökohtaisesti, vaan voi vapaasti käyttää sijaisia suorittamaan niitä puolestaan. Lähettikumppanin tulee ilmoittaa sijaisen käytöstä Woltille etukäteen, jotta Wolt voi huolehtia lakisääteisistä velvoitteistaan.
2. Rights and responsibilities of the Courier Partner	2. Lähettikumppanin oikeudet ja velvollisuudet
2.1. The Courier Partner is responsible for Delivery Services being performed professionally, efficiently and in compliance with any applicable laws, regulations (e.g. traffic safety rules), this Agreement and/or specific guidelines such as the Food Safety Guidelines (Appendix 1).	2.1. Lähettikumppani vastaa siitä, että Kuljetustoimeksiannot suoritetaan ammattimaisesti, tehokkaasti ja sovellettavan lainsäädännön, määräysten (esim. liikenneturvallisuusohjeiden), tämän Sopimuksen ja/tai erityisten ohjeiden, kuten Elintarvikkeiden turvallisuusohjeiden (Liite 1) mukaisesti.
2.2. The Courier Partner is responsible for the appropriate use of his user account of the Courier Partner App. The Courier Partner commits to keep the user-specific credentials confidential and not accessible to third parties. Where it is suspected that a third party has unauthorized access to the user account of the Courier Partner, the Courier Partner shall immediately inform Wolt thereof.	2.2. Lähettikumppani vastaa Lähettikumppani -sovelluksen käyttäjätilinsä asianmukaisesta käytöstä. Lähettikumppani sitoutuu pitämään käyttäjäkohtaiset tunnukset salassa ja kolmansilta osapuolilta suojassa. Mikäli epäillään, että kolmannella osapuolella on luvaton pääsy Lähettikumppanin käyttäjätilille, tulee Lähettikumppanin ilmoittaa asiasta välittömästi Woltille.
2.3. The Courier Partner is responsible for the procurement of a car, motorbike, scooter, e-vehicle, or a bicycle and of any devices (such as telephones and connections) as well as any other equipment required for the Delivery Services, including an appropriate thermo-insulated bag with a separate inner container. The Courier Partner can lend a thermo-insulated bag as well as Wolt branded outerwear (e.g. a jacket) against deposit from Wolt for the duration of this Agreement. Wearing such outerwear is fully voluntary.	2.3. Lähettikumppani vastaa auton, moottoripyörän, skootterin, sähköauton tai polkupyörän ja mahdollisten laitteiden (kuten puhelinten ja liittymien) sekä muiden Kuljetustoimeksiantojen hoitamiseen tarvittavien välineiden hankinnasta, mukaan lukien asianmukainen erillisellä sisäosalla varustettu lämpölauku. Tämän Sopimuksen voimassaollessa Lähettikumppani voi lainata panttia vastaan lämpöeristetyin laukun sekä Wolt-merkkisiä päällysvaatteita (esim. takki) Woltilta. Wolt-päällysvaatteiden käyttäminen on täysin vapaaehtoista.
2.4. The Courier Partner must be in possession of valid permits (e.g. driving license), other qualifications, registrations or insurances required for performing Delivery Services. The Courier Partner must hold a valid right to work and reside in Finland (e.g. work / residence permit), in case the Courier Partner has a nationality that requires such permit in order to carry out Delivery Services. Upon request, the	2.4. Lähettikumppanilla tulee olla voimassaolevat luvat (esim. ajokortti), muut pätevyudet, rekisteröinnit tai vakuutukset, joita tarvitaan Kuljetustoimeksiantojen suorittamiseen. Lähettikumppanilla on oltava voimassaoleva oikeus työskennellä ja oleskella Suomessa (esim. työ- / oleskelulupa), jos Lähettikumppanin kansalaisuus tällaista lupaa edellyttää Kuljetustoimeksiantojen suorittamiseksi. Lähettikumppanin on pyynnöstä toimitettava Woltille

Courier Partner must provide Wolt with a copy of any of the documents referred to above. The Courier Partner is responsible to inform Wolt immediately in writing of changes associated with any of the aforementioned permits, registrations etc. that could impact his ability to perform Delivery Services. 2.5. The Courier Partner is responsible for obtaining any mandatory insurances and ensuring also otherwise sufficient insurance coverage in order to carry out the Delivery Services (e.g. the Courier Partner's third party liability insurance must cover commercial use of the Courier Partner's vehicle). The Courier Partner may freely opt-out of any insurance provided by Wolt by notifying Wolt thereof in writing. 2.6. The Courier Partner is personally liable for all costs and expenses arising from performing Delivery Services incl. all expenses resulting from the use of any devices and vehicles (e.g. fuel, insurance, maintenance expenses and applicable vehicle taxes), any cost of required permits etc. as well as any other expenses (e.g. parking or speeding tickets) or damages arising from performing Delivery Services. 2.7. While using substitutes, the Courier Partner remains fully responsible for the appropriate use of its Courier Partner account and the performance of Delivery Services in accordance with this Agreement. The Courier Partner shall also be liable for the compliance with any applicable laws relating to the use of substitutes, e.g. verification of the substitute's valid right to work and employer obligation such as payment of salary and related contributions. 2.8. When delivering alcoholic beverages or other age-restricted items, the Courier Partner must before hand-over verify the User's age via identity card or another identity document if there is any suspicion of the User being younger than the legally required age (i.e. underage). Should the User refuse to show his/her identity card or another appropriate identity document or if it's evident that the User is underage or intoxicated, the Courier Partner is obliged to hold the hand-over of the	kopio kaikista edellä mainituista asiakirjoista. Lähettilumppani on velvollinen ilmoittamaan välittömästi Woltille kirjallisesti kaikista edellä mainituissa luvissa, rekisteröinneissä tms. tapahtuvista muutoksista, jotka voivat vaikuttaa hänen kykynsä suorittaa Kuljetustoimeksiantoja. 2.5. Lähettilumppani vastaa pakollisten vakuutusten hankkimisesta ja siitä, että hänellä on myös muutoin riittävä vakuutusturva Kuljetustoimeksiantojen suorittamiseksi (esim. Lähettilumppanin vastuuvakuutuksen tulee kattaa hänen ajoneuvonsa kaupallinen käyttö). Lähettilumppani voi vapaasti kieltäytyä Woltin mahdollisesti tarjoamasta vakuutuksesta ilmoittamalla siitä Woltille kirjallisesti. 2.6. Lähettilumppani vastaa itse kaikista Kuljetustoimeksiantojen suorittamisesta aiheutuvista kustannuksista ja kuluista, mukaan lukien laitteiden ja ajoneuvojen käyttökustannukset (esim. polttoaine, vakuutus, huoltokustannukset ja kulloinkin sovellettavat ajoneuvoverot), tarvittavista luvista jne. aiheutuvat kulut sekä muut kulut (esim. pysäköinti- tai ylinopeussakot) ja Kuljetustoimeksiantojen suorittamisesta aiheutuvat vahingot. 2.7. Sijaista käytettäessä Lähettilumppani vastaa edelleen Lähettilumppani-tilinsä asianmukaisesta käytöstä ja Kuljetustoimeksiantojen suorittamisesta tämän Sopimuksen mukaisesti. Lähettilumppani vastaa myös sijaisen käyttöön liittyvän lainsäädännön noudattamisesta, esim. sijaisen työnteke-oikeuden voimassaolon tarkistaminen sekä työnantajavelvoitteista kuten palkanmaksusta ja siihen liittyvistä maksuista huolehtiminen. 2.8. Alkoholiuomia tai muita ikärajoitettuja tuotteita toimitettaessa, tulee Lähettilumppanin varmistaa ennen tuotteiden luovutusta Käyttäjän ikä henkilökortista tai muusta henkilöllisyystodistuksesta, jos on epäily Käyttäjän olevan laissa edellytettyä nuorempi (eli alaikäinen). Mikäli Käyttäjä kieltäytyy esittämästä henkilökorttia tai muuta asianmukaista henkilöllisyystodistusta taikka jos on ilmeistä, että Käyttäjä on alaikäinen tai päihtynyt, Lähettilumppani ei saa luovuttaa ikärajoituksen alaista tuotetta Käyttäjälle ja hänen tulee ottaa yhteyttä Woltin tukeen
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aged restricted item to the User and to contact Wolt support through the Courier Partner App.	Lähettilumppani -sovelluksen kautta.
2.9. The Courier Partner commits not to: (a) use or attempt to use another person's Wolt account; (b) copy, modify or create derivative works of the Platform or the Courier Partner App or any related technology; (c) disassemble or otherwise attempt to derive the source code for the Platform, the Courier Partner App or any related technology, or any part thereof; (d) collect, use, copy, or transfer any information obtained from the Courier Partner App without the consent of Wolt; (e) use bots or other automated methods to use the Platform or the Courier Partner App; (f) create a Wolt account using a fake identity or an identity of another person; and (g) access the Platform except through the interfaces expressly provided by Wolt.	2.9. Lähettilumppani sitoutuu siihen, että hän ei: (a) käytä tai yritä käyttää toisen henkilön Wolt-tiliä; (b) kopioi, muokkaa tai luo muunnoksia Alustasta tai Lähettilumppani -sovelluksesta taikka näihin liittyvästä teknologiasta; (c) pura tai muutoin yritä saada itselleen Alustan, Lähettilumppani -sovelluksen tai näihin liittyvän teknologian lähedekoodia tai sen osaa; (d) kerää, käytä, kopioi taikka siirrä Lähettilumppani -sovelluksesta saatuja tietoja ilman Woltin suostumusta; (e) käytä botteja tai muita automatisoituja menetelmiä Alustan tai Lähettilumppani-sovelluksen käyttämiseen; (f) luo Wolt-tiliä käyttäen väärennettyä henkilöllisyyttä tai toisen henkilön henkilöllisyyttä; ja (g) käytä Alustaa muutoin kuin Woltin nimenomaisesti tarjoamien käyttöliittymien kautta.
3. Rights and responsibilities of Wolt	3. Woltin oikeudet ja velvollisuudet
3.1. Wolt is entitled to make deductions from the Courier Partner's remuneration if the Delivery Services are not performed (a) professionally and/or in accordance with this Agreement; (b) in a reasonable time without jeopardizing food safety or (c) the Delivery Services result in complaints from the users of the Platform. The amount of the deduction may not exceed the amount of compensation paid by Wolt.	3.1. Woltilla on oikeus tehdä vähennyksiä Lähettilumppanin palkkiosta, jos Kuljetustoimeksiantoja ei suoriteta (a) ammattimaisesti ja/tai tämän Sopimuksen mukaisesti; (b) kohtuullisessa ajassa vaarantamatta elintarviketurvallisuutta tai (c) Kuljetuspalvelut johtavat valituksiin Alustan käyttäjiltä. Vähennyksen määrä ei saa ylittää Woltin maksaman hyvityksen määrää.
3.2. Wolt is entitled to obtain upon request appropriate documentation on all permits, licenses, registrations etc. referred to in Section 2 relating to the Courier Partner's ability to provide Delivery Services and comply with related requirements.	3.2. Woltilla on oikeus saada pyynnöstä asianmukaiset asiakirjat kaikista kappaleesta 2. mainituista luvista, lisensseistä, rekisteröinneistä jne., jotka liittyvät Lähettilumppanin kykyyn tarjota Kuljetustoimeksiantoja ja noudattaa niihin liittyviä vaatimuksia.
3.3. Wolt observes the care of a prudent service provider, but the Platform may be temporarily unavailable for scheduled or unscheduled maintenance, either by Wolt or by third-party providers, or because of reasons beyond the control of Wolt. Wolt Platform is provided on an "as is" and "as available" basis and Wolt does not warrant that the Platform will be uninterrupted, timely, secure, or error-free.	3.3. Wolt noudattaa varovaisen palveluntarjoajan huolellisuutta, mutta Alusta voi olla tilapäisesti poissa käytöstä Woltin tai kolmannen osapuolen säännöllisen tai ennalta-arvaamattoman huoltotoimenpiteen taikka Woltista riippumattomista syistä. Woltin Alusta tarjotaan "sellaisenaan" ja "sellaisena kuin se on saatavilla", eikä Wolt takaa, että Alusta on keskeytymätön, oikea-aikainen, turvallinen tai virheetön.
3.4. Wolt does not warrant the quality of any items sold or otherwise handed over by Wolt to the Courier Partner and Wolt shall not be liable for any defects	3.4. Wolt ei vastaa Woltin Lähettilumppaneille myymien tai muulla tavoin näille luovutettujen tuotteiden laadusta, eikä Wolt ole vastuussa tuotteiden virheistä tai muista

or other deficiencies of the items or for any personal injury, direct or indirect damages resulting thereof. Any items sold or otherwise handed over by Wolt to the Courier Partner are handed over "as is".	puutteista taikka niistä johtuvista henkilövahingoista, välittömistä tai välillisistä vahingoista. Kaikki Woltin Lähettikumppaneille myymät tai muulla tavoin luovuttamat tuotteet luovutetaan "sellaisenaan".
4. Confidentiality The Courier Partner must keep this Agreement confidential as well as all materials and information received from Wolt marked as confidential or that should be understood to be confidential, regardless of form, and not to use confidential information for any other purposes than the purposes of this Agreement. Confidential information includes information on Users of the Platform and any orders made by them. 5. Intellectual Property Rights 5.1. All Intellectual Property Rights associated with the Wolt Platform and related documentation and all parts and copies thereof, shall remain sole and exclusive property of Wolt and/or its subcontractors/licensors. "Intellectual Property Rights" shall mean copyrights and related rights (incl. database, catalogue, and photography rights), patents, utility models, design rights, trademarks, trade names, trade secrets, know-how and any other form of registered or unregistered intellectual property rights. 5.2. This Agreement does not grant the Courier Partner any Intellectual Property Rights in the Courier Partner App or Platform and all rights not expressly granted hereunder are reserved by Wolt and its subcontractors/licensors.	4. Salassapito Lähettikumppanin on pidettävä tämä Sopimus luottamuksellisena samoin kuin kaikki Woltilta saadut materiaalit ja tiedot, jotka on merkitty luottamuksellisiksi tai jotka on ymmärrettävä luottamuksellisiksi niiden muodosta riippumatta, eikä hän saa käyttää luottamuksellisia tietoja mihinkään muuhun tarkoitukseen kuin tämän Sopimuksen tarkoituksiin. Luottamuksellisiin tietoihin kuuluvat tiedot Alustan Käyttäjistä ja näiden tekemistä tilauksista. 5. Teollis- ja tekijänoikeudet 5.1. Kaikki Woltin Alustaan ja siihen liittyvään dokumentaatioon liittyvät immateriaalioikeudet sekä kaikki niiden osat ja kopiot pysyvät Woltin ja/tai sen alihankkijoiden/lisenssinantajien yksinomaisena omaisuutena. "Immateriaalioikeuksilla" tarkoitetaan tekijänoikeuksia ja niihin liittyviä oikeuksia (mukaan lukien tietokanta-, luettelo- ja valokuvausoikeudet), patentteja, hyödyllisyysmalleja, mallioikeuksia, tavaramerkkejä, kauppanimiä, liikesalaisuuksia, taitotietoa ja kaikenlaisia muita rekisteröityjä tai rekisteröimättömiä immateriaalioikeuksia. 5.2. Tämä Sopimus ei anna Lähettikumppanille mitään immateriaalioikeuksia Lähettikumppani -sovellukseen tai Alustaan, ja Wolt ja sen alihankkijat/lisenssinantajat pidättävät itsellään kaikki oikeudet, joita ei ole nimenomaisesti myönnetty tässä Sopimuksessa.
6. Personal Data <i>Personal data processed by Wolt</i> 6.1. Wolt processes the personal data of the Courier Partner in accordance with the http://wolt.com/en/courier-privacy-policy, as in force and updated by Wolt from time to time. <i>Personal data processed by the Courier Partner on behalf of Wolt</i> 6.2. In this and the following sections, "Personal Data" means any information relating to an identified or	6. Henkilötiedot <i>Woltin käsittelemät henkilötiedot</i> 6.1. Wolt käsittelee Lähettikumppanin henkilötietoja kulloinkin voimassaolevan Wolt http://wolt.com/en/courier-privacy-policy mukaisesti ja, jota Wolt päivittää ajoittain. <i>Lähettikumppanin Woltin puolesta käsittelemät henkilötiedot</i> 6.2. Tässä ja seuraavissa kohdissa "Henkilötiedoilla" tarkoitetaan kaikkia tunnistettuun tai tunnistettavissa

identifiable natural person the Courier Partner has access to via the Courier Partner App or through providing the Delivery Services, and which the Courier Partner processes on behalf of Wolt in the course and within the scope of providing the Delivery Services in accordance with and during the term of this Agreement.	olevaan luonnolliseen henkilöön liittyviä tietoja, joihin Lähettikumppanilla on pääsy Lähettikumppani -sovelluksen tai Kuljetustoimeksiantojen tarjoamisen kautta, ja joita Lähettikumppani käsittelee Woltin puolesta Kuljetustoimeksiantojen tarjoamisen yhteydessä ja puitteissa tämän Sopimuksen mukaisesti ja sen voimassaoloaikana.
6.3. In connection with the Courier Partner's use of the Courier Partner App and Platform and providing the Delivery Services, Wolt may transfer Personal Data to the Courier Partner for processing on behalf of Wolt. Such Personal Data includes the Personal Data of the users of the Platform and Wolt's employees and subcontractors. The following terms and conditions set forth in this section concern the data processing activities of the Courier Partner as data processor with respect to the Personal Data it processes on behalf of Wolt.	6.3. Lähettikumppanin Lähettikumppani -sovelluksen ja -alustan käytön ja Kuljetuspalvelujen tarjoamisen yhteydessä Wolt voi siirtää henkilötietoja Lähettikumppanille käsittelyä varten Woltin puolesta. Tällaisia henkilötietoja ovat alustan käyttäjien sekä Woltin työntekijöiden ja alihankkijoiden henkilötiedot. Seuraavat tässä osiossa esitetyt ehdot koskevat Lähettikumppanin tietojenkäsittelytoimia tietojenkäsittelijänä koskien henkilötietoja, joita se käsittelee Woltin puolesta.
<i>General requirements relating to processing of Personal Data</i>	<i>Henkilötietojen käsittelyä koskevat yleiset vaatimukset</i>
6.4. The Personal Data processed by the Courier Partner on behalf of Wolt includes Personal Data of the users of the Platform as well as Wolt's employees and subcontractors, such as their name, photos, phone number, meal ordered, address, door code and information provided by the data subject to the Courier Partner through the Courier Partner App or otherwise.	6.4. Lähettikumppanin Woltin puolesta käsittelemät henkilötiedot sisältävät alustan käyttäjien sekä Woltin työntekijöiden ja alihankkijoiden henkilötietoja, kuten heidän nimi, valokuva, puhelinnumero, tilattu ateria, osoite, ovikoodi ja tiedot, jotka rekisteröity on toimittanut Lähettikumppanille Lähettikumppani -sovelluksen kautta tai muuten.
6.5. The Courier Partner shall not use Personal Data for any purpose other than that of delivering the orders made by the users via the Platform and will not disclose the Personal Data to any third parties. The Courier Partner shall process Personal Data in accordance with the Agreement and documented instructions of Wolt. The Courier Partner shall process any Personal Data in accordance with the most recent version of the Wolt Privacy Statement as published at the Wolt website. If the Courier Partner detects that any instruction given by Wolt is non-compliant with the requirements of legislation applicable to the Courier Partner's operations, the Courier Partner shall inform Wolt thereof in writing.	6.5. Lähettikumppani ei käytä henkilötietoja mihinkään muuhun tarkoitukseen kuin Käyttäjien Alustan kautta tekemien tilausten toimittamiseen eikä luovuta henkilötietoja kolmansille osapuolille. Lähettikumppanin tulee käsitellä henkilötietoja Sopimuksen ja Woltin dokumentoitujen ohjeiden mukaisesti. Lähettikumppanin on käsiteltävä henkilötietoja Woltin verkkosivuilla julkaistun Woltin tietosuojaselosteen viimeisimmän version mukaisesti. Jos Lähettikumppani havaitsee, että Woltin antamat ohjeet eivät ole Lähettikumppanin toimintaan sovellettavan lainsäädännön vaatimusten mukaisia, Lähettikumppanin on ilmoitettava tästä Woltille kirjallisesti.
6.6. The Courier Partner and Wolt shall comply with the EU Regulation 2016/679 on the protection of natural persons with regard to the processing of	6.6. Lähettikumppanin ja Woltin on noudatettava luonnollisten henkilöiden suojelusta henkilötietojen käsittelyssä ja näiden tietojen vapaasta liikkuvuudesta

personal data and on the free movement of such data and any applicable European or foreign data protection laws as amended. 6.7. Courier Partner shall implement appropriate technical and organizational security measures to ensure a level of security appropriate to the risk for the privacy of individuals in the Courier Partner's processing operations, in particular in order to safeguard the Personal Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access, e.g. by keeping confidential and secret the Courier Partner's credentials to the Courier Partner App and not copying any Personal Data outside the Courier Partner App onto Courier Partner's own devices or elsewhere.	annettua EU:n asetusta 2016/679 sekä sovellettavia eurooppalaisia tai ulkomaisia tietosuojalakeja, sellaisina kuin ne ovat muutettuina. 6.7. Lähettikumppanin on toteutettava asianmukaisia teknisiä ja organisatorisia turvatoimia varmistaakseen tietosuojan tason, joka vastaa yksilöiden yksityisyyteen kohdistuvaa riskiä Lähettikumppanin käsittelytoimissa, erityisesti henkilötietojen suojaamiseksi vahingossa tapahtuvalta tai laittomalta tuhoamiselta, häviämiseltä, muuttamiselta, luvattomalta paljastamiselta tai käytöltä, esimerkiksi pitämällä Lähettikumppanisovelluksen käyttäjätunnukset luottamuksellisina ja salaisina ja olemalla kopioimatta mitään henkilötietoja sovelluksen ulkopuolelle Lähettikumppanin omille laitteille tai muualle.
<i>The Courier Partner's assistance obligations</i> 6.8. To respond to requests from individuals exercising their rights under applicable data protection law, such as the right of access and the right to rectification or erasure, the Courier Partner shall by appropriate technical and organizational measures provide Wolt with assistance, without undue delay, taking into account the nature of the processing. The Courier Partner shall further provide Wolt with assistance in ensuring compliance with Wolt's obligations to perform security and data protection impact and other assessments, breach notifications and prior consultations of the competent supervisory authority, as set out in the applicable data protection law, taking into account the nature of the processing and the information available to the Courier Partner. 6.9. The Courier Partner shall ensure that the persons processing Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.	<i>Lähettikumppanin avustusvelvoitteet</i> 6.8. Vastatakseen sellaisten henkilöiden pyyntöihin, jotka käyttävät sovellettavan tietosuojalainsäädännön mukaisia oikeuksiaan, kuten oikeutta tutustua tietoihin ja oikeutta oikaisuun tai poistamiseen, Lähettikumppanin on asianmukaisin teknisin ja organisatorisin toimenpitein annettava Woltille apua ilman aiheetonta viivytystä ottaen huomioon käsittelyn luonne. Lisäksi Lähettikumppanin on avustettava Woltia sen varmistamisessa, että Wolt noudattaa sovellettavassa tietosuojalainsäädännössä säädettyjä velvollisuuksiaan tehdä tietoturva- ja tietosuoja koskevia vaikutustenarviointeja ja muita arviointeja, ilmoittaa tietoturvaloukkauksista ja kuulla toimivaltaista valvontaviranomaista etukäteen, ottaen huomioon käsittelyn luonne ja Lähettikumppanin käytettävissä olevat tiedot. 6.9. Lähettikumppanin on varmistettava, että henkilötietoja käsittelevät henkilöt ovat sitoutuneet luottamuksellisuuteen tai että heillä on asianmukainen lakisääteinen salassapitovelvollisuus.
<i>Transfers of Personal Data outside the EEA</i> 6.10. The Courier Partner shall not transfer Personal Data to countries outside the European Economic Area. Wolt shall, in connection with any transfers of Personal Data outside the European Economic Area, always have the right to require that the Courier Partner enters into a contractual arrangement by using the EU standard contractual clauses for the transfer of personal data to	<i>Henkilötietojen siirrot ETA-alueen ulkopuolelle</i> 6.10. Lähettikumppani ei saa siirtää henkilötietoja Euroopan talousalueen ulkopuolisiin maihin. Woltilla on aina oikeus vaatia Euroopan talousalueen ulkopuolelle tapahtuvien henkilötietojen siirtojen yhteydessä, että Lähettikumppani tekee sopimusjärjestelyn käyttäen EU:n vakiosopimuslausekkeita henkilötietojen siirtämiseksi kolmansiin maihin sijoittautuneille henkilötietojen käsittelijöille sovellettavan tietosuojalainsäädännön

processors established in third countries as required under applicable data protection laws. <i>Audits</i> 6.11. Courier Partner makes available to Wolt all information necessary to demonstrate compliance with the obligations laid down in the applicable data protection legislation and this Agreement and Wolt or a third-party auditor assigned by Wolt shall have the right to audit and inspect with the assistance of the Courier Partner the processing activities of the Courier Partner under the Agreement. Each Party shall bear its own costs for any such audit. Any possible audit by Wolt shall in no way limit the Courier Partner's obligations and liability under the Agreement. <i>Subprocessors</i> 6.12. Courier Partner shall be entitled to use another data processor as its subcontractor for processing Personal Data only with the prior written consent of Wolt. In case Wolt gives its consent to the processing of Personal Data by Courier Partner's subprocessor, the Courier Partner ensures that the involved subprocessors are properly qualified, are bound by a written data processing agreement with the Courier Partner, and comply with the same data processing obligations as the ones which apply to the Courier Partner under the Agreement. The Courier Partner shall be liable towards Wolt for the processing of Personal Data carried out by the Courier Partner's subprocessors. 6.13. If the Courier Partner uses third parties such as their own employee or subcontractor for the performance of the Delivery Services as the Courier Partner's substitute in accordance with the provisions of this Agreement, such Courier Partner's substitute processes Personal Data as Courier Partner's subprocessor. The Courier Partner shall ensure that the involved subprocessors comply with the same data processing obligations as the ones which apply to the Courier Partner under the Agreement. The Courier Partner shall be liable towards Wolt for the processing of Personal Data carried out by the Courier Partner's substitute. <i>Breaches</i>	edellyttämällä tavalla. <i>Tarkastukset</i> 6.11. Lähettikumppani antaa Woltin käyttöön kaikki tiedot, jotka ovat tarpeen sen osoittamiseksi, että sovellettavassa tietosuojalainsäädännössä ja tässä Sopimuksessa säädettyjä velvoitteita noudatetaan, ja Woltilla tai Woltin nimeämällä ulkopuolisella tarkastajalla on oikeus tarkastaa ja tarkastuttaa Lähettikumppanin avustuksella Lähettikumppanin sopimuksen mukaiset käsittelytoimet. Kumpikin Osapuoli vastaa itse tällaisesta tarkastuksesta aiheutuvista kustannuksistaan. Mahdollinen Woltin suorittama tarkastus ei millään tavoin rajoita Lähettikumppanin Sopimuksen mukaisia velvoitteita ja vastuuta. <i>Alikäsittelijät</i> 6.12. Lähettikumppanilla on oikeus käyttää toista tietojen käsittelijää alihankkijana henkilötietojen käsittelyssä vain Woltin etukäteen antamalla kirjallisella suostumuksella. Jos Wolt antaa suostumuksensa siihen, että Lähettikumppanin alihankkija käsittelee henkilötietoja, Lähettikumppani varmistaa, että alihankkijoilla on asianmukainen pätevyys, että heitä sitoo kirjallinen tietojenkäsittelysopimus Lähettikumppanin kanssa ja että he noudattavat samoja tietojenkäsittelyvelvoitteita kuin Lähettikumppaniin sopimuksen mukaisesti sovellettavat velvoitteet. Lähettikumppani on vastuussa Woltille Lähettikumppanin alihankkijoiden suorittamasta henkilötietojen käsittelystä. 6.13. Jos Lähettikumppani käyttää kolmansia osapuolia, kuten omaa työntekijäänsä tai alihankkijaansa Kuljetustoimeksiantojen suorittamiseen Lähettikumppanin sijaisena tämän Sopimuksen määräysten mukaisesti, kyseisen Lähettikumppanin sijainen käsittelee henkilötietoja Lähettikumppanin alikäsittelijänä. Lähettikumppanin on varmistettava, että asianomaiset alikäsittelijät noudattavat samoja tietojenkäsittelyvelvoitteita kuin ne, joita sovelletaan Lähettikumppaniin sopimuksen nojalla. Lähettikumppani on vastuussa Woltille Lähettikumppanin sijaisen suorittamasta henkilötietojen käsittelystä. <i>Rikkomukset</i>
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6.14. The Courier Partner shall, without undue delay but at the latest within 48 hours after having become aware of it, inform Wolt in writing about any data breaches relating to Personal Data and any other events where the security of Personal Data processed on behalf of Wolt has been compromised. The Courier Partner's notification about the breach to Wolt shall include at least the following: (i) Description of the nature of the breach including where possible, the categories and approximate number of data subjects concerned and the categories and approximate number of personal data records concerned; (ii) Description of the likely consequences of the breach and the measures taken by the Partner to address the breach, including, where appropriate, measures to mitigate its possible adverse effects. <i>Deletion and return of Personal Data</i> 6.15. After the termination or expiry of this Agreement, the Courier Partner shall, at the choice of Wolt, return all Personal Data to Wolt or permanently delete Personal Data from its storage media. 7. Limitation of liability 7.1. Neither Party shall be liable to the other Party for indirect damages (incl. lost profits, lost sales, or business interruption). In case the agreed limitation of liability is not permitted by applicable law, the liability of the Parties will be limited to the greatest extent permitted by such law. 7.2. This limitation of liability shall not apply if damage is caused, (a) intentionally or by gross negligence or (b) by breach of the Courier Partner's confidentiality obligations set out in Section 4 or (c) by the Courier Partner breaching the obligations set out in Section 6. 8. Term and Termination 8.1. This Agreement comes into effect upon signature by both Parties. Either party may terminate this Agreement for any reason with a (14) day's prior written notice to the other Party.	6.14. Lähettikumppanin tulee ilman aiheetonta viivytystä, mutta viimeistään 48 tunnin kuluessa siitä, kun hän on saanut siitä tiedon, ilmoittaa Woltille kirjallisesti kaikista henkilötietoihin liittyvistä tietoturvaloukkauksista ja muista tapahtumista, joissa Woltin puolesta käsiteltyjen henkilötietojen turvallisuus on vaarantunut. Lähettikumppanin ilmoituksen Woltille tapahtuneesta rikkomuksesta tulee sisältää ainakin seuraavat tiedot: (i) Kuvaus rikkomuksen luonteesta, mukaan lukien, jos mahdollista asianomaisten rekisteröityjen ryhmät ja likimääräinen lukumäärä sekä asianomaisten henkilörekisterien ryhmät ja likimääräinen lukumäärä; (ii) Kuvaus rikkomuksen todennäköisistä seurauksista ja toimenpiteistä, joita kumppani on toteuttanut rikkomuksen korjaamiseksi, mukaan lukien tarvittaessa toimenpiteet sen mahdollisten haitallisten vaikutusten lieventämiseksi. <i>Henkilötietojen poistaminen ja palauttaminen</i> 6.15. Tämän Sopimuksen irtisanomisen tai päättymisen jälkeen tulee Lähettikumppanin Woltin valinnan mukaan palauttaa kaikki henkilötiedot Woltille tai poistaa henkilötiedot pysyvästi tallennusvälineestään. 7. Vastuunrajoitus 7.1. Kumpikaan Osapuoli ei vastaa toisen Osapuolen välillisistä vahingoista (mukaan lukien menetetyt voitot, menetetyt myynnit tai liiketoiminnan keskeytyminen). Jos sovittu vastuunrajoitus ei ole sovellettavan lain mukaan sallittua, osapuolten vastuuta rajoittuu suurimpaan kyseisen lain sallimaan laajuuteen. 7.2. Tätä vastuunrajoitusta ei sovelleta, jos vahinko on aiheutunut (a) tahallisesti tai törkeästä huolimattomuudesta tai (b) siitä, että Lähettikumppani on rikkonut kohdassa 4 mainitun luottamuksensuojan tai (c) Lähettikumppanin rikkoo kohdassa 6 mainittuja velvoitteitaan. 8. Voimassaoloaika ja irtisanominen 8.1. Tämä Sopimus tulee voimaan, kun molemmat osapuolet ovat allekirjoittaneet sen. Kumpikin osapuoli voi irtisanoa tämän Sopimuksen mistä tahansa syystä ilmoittamalla siitä kirjallisesti toiselle osapuolelle (14) päivää etukäteen.
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8.2. The Parties have the right to terminate this Agreement with immediate effect in case the other Party materially breaches their obligations under this Agreement. Wolt may always terminate this Agreement with immediate effect e.g. in case the Courier Partner: (a) does not hold some of the required permits or licenses incl. those set out in Section 2.4, (b) has allowed third parties to access their Courier Partner account (Section 2.2) (c) has compromised food safety e.g. by not complying with Wolt's Food Safety Guidelines, (d) has breached obligations related to data protection or privacy (Sections 2.2, 4 or 6), (e) has endangered the safety of the Users of the Platform or Wolt's employees or courier or merchant partners, or (f) has received negative feedback from other users (incl. merchants, restaurants, and Wolt Support) of the Platform. 8.3. The provisions of this Agreement which should survive the termination or other expiration of this Agreement shall survive any expiration of this Agreement, including the confidentiality obligations set out in Section 4. 9. Miscellaneous 9.1. If any provision of this Agreement is found void, illegal or otherwise unenforceable, the remaining provisions of this Agreement shall remain in full force and effect. 9.2. Wolt is entitled to unilaterally assign this Agreement. The Courier Partner may not assign this Agreement without the prior written consent of Wolt. 9.3. The Courier Partner acknowledges and agrees to comply with Wolt's supplier code of conduct, in force and as updated by Wolt from time to time. 9.4. Wolt is entitled to change this Agreement, including any applicable delivery fees, by providing the Courier Partner with at least seven (7) days' prior notice. If the Courier Partner does not accept the change, the Courier Partner has the right to	8.2. Osapuolilla on oikeus irtisanoa tämä Sopimus välittömästi, jos toinen Osapuoli olennaisesti rikkoo tämän Sopimuksen mukaisia velvoitteitaan. Wolt voi aina irtisanoa tämän Sopimuksen välittömästi esimerkiksi, jos Lähettikumppani: (a) ei ole joitakin vaadittuja lupia tai lisenssejä, mukaan lukien kohdassa 2.4 esitetyt luvat tai lisenssit, (b) on antanut kolmansille osapuolille mahdollisuuden käyttää Lähettikumppani -tiliään (kohta 2.2) (c) on vaarantanut elintarviketurvallisuuden esimerkiksi, että se ei ole noudattanut Woltin elintarviketurvallisuusohjeita, (d) on rikkonut tietosuojan tai yksityisyyteen liittyviä velvoitteita (kohdat 2.2, 4 tai 6), (e) on vaarantanut Alustan Käyttäjien tai Woltin työntekijöiden tai lähetti- tai kauppiaskumppaneiden turvallisuuden, tai (f) on saanut negatiivista palautetta muilta Alustan käyttäjiltä (mukaan lukien kauppiaat, ravintolat ja Woltin Support). 8.3. Tämän Sopimuksen määräykset, joiden tulee luonteensa vuoksi jäädä voimaan tämän Sopimuksen irtisanomisen tai muun voimassaolon päättymisen jälkeen, jäävät voimaan tämän Sopimuksen voimassaolon päättymisen jälkeen, mukaan lukien luvun 4. mukaiset salassapitovelvoitteet. 9. Sekalaista 9.1. Jos jokin tämän Sopimuksen määräys todetaan mitättömäksi, laittomaksi tai muutoin täytäntöönpanokelvottomaksi, tämän Sopimuksen muut ehdot pysyvät voimassa. 9.2. Woltilla on oikeus yksipuolisesti siirtää tämä Sopimus. Lähettikumppani ei saa siirtää tätä Sopimusta ilman Woltin etukäteen antamaa kirjallista suostumusta. 9.3. Lähettikumppani ymmärtää ja sitoutuu noudattamaan kulloinkin voimassaolevia Woltin toimittajan toimintaohjeita, joita Wolt päivittää ajoittain. 9.4. Woltilla on oikeus muuttaa tätä Sopimusta, mukaan lukien kulloinkin sovellettavia kuljetuspalkkioita, ilmoittamalla siitä Lähettikumppanille vähintään seitsemän (7) päivää etukäteen. Jos Lähettikumppani ei hyväksy muutosta, Lähettikumppanilla on oikeus irtisanoa tämä Sopimus ilmoittamalla siitä Woltille
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terminate this Agreement by notifying Wolt thereof in writing prior to the effective date of such change. 9.5. This Agreement is bilingual. In case of any discrepancies between the language versions, the text in English shall prevail. 9.6. This Agreement is governed by the laws of Finland. Any dispute arising out of or relating to this Agreement shall primarily be settled through negotiations. If the Parties are not able to come to a mutual understanding within one (1) month from the beginning of the negotiations, either Party may bring the dispute to the competent District Court. 10. Appendix The appendices listed below form an integral part of this Agreement. 1) Food Safety Guidelines <i>[SIGNATURE PAGE TO FOLLOW AFTER THE APPENDICES]</i>	kirjallisesti ennen muutoksen voimaantulopäivää. 9.5. Tämä Sopimus on kaksikielinen. Jos kieliversioiden välillä on eroavaisuuksia, englanninkielinen teksti on ensisijainen. 9.6. Tähän Sopimukseen sovelletaan Suomen lakia. Kaikki tästä Sopimuksesta johtuvat tai siihen liittyvät erimielisyydet ratkaistaan ensisijaisesti neuvottelemalla. Jos Osapuolet eivät pääse yhteisymmärrykseen yhden (1) kuukauden kuluessa neuvottelujen alkamisesta, kumpi tahansa Osapuoli voi saattaa riidan toimivaltaisen käräjäoikeuden käsiteltäväksi. 10. Liite Jäljempänä luetellut liitteet ovat erottamaton osa tätä Sopimusta. 1) Elintarvikkeiden turvallisuusohjeet <i>[LIITTEIDEN JÄLKEEN SEURAA ALLEKIRJOITUSSIVU]</i>
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FOOD SAFETY GUIDELINES (APPENDIX 1)	ELINTARVIKKEIDEN TURVALLISUUSOHJEET (LIITE 1)
In order to ensure compliance with applicable food safety laws and regulations and to maintain the quality of the delivered goods, the Delivery Services shall be performed in accordance with these guidelines: - Food deliveries shall always be made by using an appropriate thermo-insulated bag, equipped with a separate inner container. - Restaurants/grocery stores shall hand over for delivery only ready-prepared and well-packaged meals or food items, which shall be delivered to the User without undue delay to maintain food safety. Food that has been in delivery for more than 1 hour may not be handed over to the User. - Food deliveries from the restaurants are packaged in such a way that Courier Partners do not come into direct contact with the food. The Courier Partner places the food immediately in a refrigerated or thermal bag, depending on the temperature and quality of the goods being transported. - Food is handed over in bags intended for transportation. The goods must be handed over to the User directly from the refrigerated or thermal bag, depending on the temperature and quality of the goods being transported. to maintain the best possible quality of food. Products cannot be taken out of the bag during delivery. - The Courier Partner will ensure during the delivery that the quality of the goods is maintained. If any significant changes in the quality of the goods occur or the Courier Partner has reason to believe that the temperature of the order has been compromised during delivery, the Courier Partner shall notify Wolt support about it immediately. - The products will be delivered in a manner in which no foreign smell, taste or other harmful properties affects the quality of the product or gets involved in any way with the product. - If the Courier Partner suffers from generally contagious illnesses (such as the flu), the Courier Partner shall refrain from performing the Delivery Services.	Soveltuvien elintarviketurvallisuuslakien ja -määrysten noudattamisen varmistamiseksi ja toimitettavien tavaroiden laadun ylläpitämiseksi, tulee Kuljetustoimeksiannot toteuttaa näiden ohjeiden mukaisesti: - Aterioiden toimitukseen tulee käyttää aina asianmukaista lämpöeristettyä laukkua, jossa on erillinen sisälokero. - Ravintolat/päivittäistavarakaupat luovuttavat kuljetettavaksi ainoastaan valmiita ja hyvin pakattuja aterioita/elintarvikkeita, jotka toimitetaan Käyttäjälle ilman aiheutonta viivästystä elintarviketurvallisuuden varmistamiseksi. Yli tunnin kuljetettavana ollutta ruokaa ei saa luovuttaa Käyttäjälle. - Ruokakuljetukset ravintolasta on pakattu siten, että Lähettikumppanit eivät joudu suoraan kosketukseen ruoan kanssa. Lähettikumppani sijoittaa ruokatoimituksen välittömästi kylmä- tai lämpölaukkuun kuljetettavan tavarán lämpötilasta ja laadusta riippuen. - Elintarvikkeet luovutetaan kuljetukseen tarkoitetuissa pusseissa. Tavarat tulee luovuttaa Käyttäjälle suoraan kylmä- tai lämpölaukusta kuljetettavan tavarán lämpötilasta ja laadusta riippuen. ruoan parhaan mahdollisen laadun säilyttämiseksi. Tuotteita ei voi ottaa ulos laukusta toimituksen aikana. - Lähettikumppani varmistaa toimituksen aikana, että tavarán laatu säilyy. Mikäli tavarán laadussa tapahtuu merkittäviä muutoksia tai Lähettikumppanilla on syytä epäillä, että tilauksen lämpötila on vaarantunut toimituksen aikana, Lähettikumppanin on ilmoitettava asiasta välittömästi Wolt-tukeen. - Tuotteet toimitetaan siten, että mikään vieras haju, maku tai muut haitalliset ominaisuudet eivät vaikuta tuotteen laatuun tai puutu millään tavalla tuotteeseen. - Jos Lähettikumppanilla on yleisesti tarttuva sairaus (kuten flunssa), tulee Lähettikumppanin pidättäytyä Kuljetustoimeksiantojen hoitamisesta.

The Courier Partner confirms, before signing this Agreement, to have obtained the below listed documents through the HelloSigned tool and to have reviewed and understood them. • Courier Partner Service Agreement • Food Safety Guidelines (Appendix 1) • Delivery Fees in force at the time of signing this Agreement • Information about deposits and value list of items • Courier-privacy-policy • Guidelines for Wolt Partners This Agreement enters into force once signed by both Parties. This Agreement can be signed by electronic means (e.g. email or electronic signature).	Lähetkumppani vahvistaa ennen tämän Sopimuksen allekirjoittamista, että hän on saanut HelloSign-työkalun kautta alla mainitut dokumentit ja, että hän on tutustunut niihin ja ymmärtää niiden merkityksen. • Lähetkumppanin Toimeksiantosopimus • Elintarvikkeiden turvallisuusohjeet (Liite 1) • Tämän Sopimuksen allekirjoitushetkellä voimassa olevat kuljetuspalkkiot • Tiedot panteista ja tuotteiden hintaluettelo • Lähetkumppanin tietosuojakäytäntö • Lähetkumppaneiden toimintaohjeistus Tämä Sopimus tulee voimaan kummankin Osapuolen allekirjoituksin. Tämä Sopimus voidaan allekirjoittaa sähköisesti (esim. sähköpostitse tai sähköisellä allekirjoituksella).
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Helsingissä, 02 / 21 / 2024

WOLT ENTERPRISES OY



Lauri Hallavo
Head of Operations, Finland

COURIER PARTNER



Title	Wolt: New service agreement for Truster pro light
File name	FIN_Service Agree...mpany_02_2024.pdf
Document ID	c92cec44434c24f8ad955149f299ccad422091f0
Audit trail date format	MM / DD / YYYY
Status	● Signed

Document History



02 / 20 / 2024
09:35:04 UTC

Sent for signature to Nawarathna Mudiyansele Mujitha Manorathna (mujitha.m3@gmail.com) from waltteri.saari@wolt.com
IP: 188.127.211.134



02 / 20 / 2024
09:35:43 UTC

Viewed by Nawarathna Mudiyansele Mujitha Manorathna (mujitha.m3@gmail.com)
IP: 195.148.153.48



02 / 21 / 2024
17:53:51 UTC

Signed by Nawarathna Mudiyansele Mujitha Manorathna (mujitha.m3@gmail.com)
IP: 84.249.129.225



02 / 21 / 2024
17:53:51 UTC

The document has been completed.



THIS DELIVERY SERVICES AGREEMENT (the "**Agreement**") has been entered into by and between:

(1) **DELIVERY HERO FINLAND LOGISTICS OY**, business ID 2435555-1, Elielinaukio 5 B, 00100 Helsinki, email deliverypartners@foodora.fi (the "**Principal**"); and

(2) the "**Service Provider**":

Trade name (if applicable): Nawarathna Mudiyansele Mujitha Manorathna

Business ID (if applicable): 3427601-3

Personal identity number (if applicable): 100493-3233

Full name (or contact person in case of trade name):

Mujitha Manorathna Nawarathna Mudiyansele

Address: Ida Aalbergin tie 1a E 149

Postal code and city: 00400, Helsinki

For the avoidance of any doubt, if a trade name has been set out above for the Service Provider, this Agreement shall be considered to have been made in such capacity.

The Principal and the Service Provider are referred to together as the "**Parties**" and individually as a "**Party**".

RECITALS

(A) The Principal is engaged in the business of online food delivery and q-commerce. The Service Provider is engaged in the business of *inter alia* delivery services.

(B) By way of this Agreement, the Principal wishes to purchase from the Service Provider, and the Service Provider wishes to procure the Services (as defined below) to the Principal or its Affiliates, as the case may be. For the purposes of this Agreement, "**Affiliate**" shall mean any entity, individual, firm, or corporation, directly or indirectly, through one or more intermediaries, controlling, controlled by, or under common control with another person.

1 SERVICES

1.1 The Service Provider undertakes to procure the Services to the Principal by using such means of transport (such as a car or a bicycle) as separately agreed by and between the Parties at the initiative of the Service Provider understanding that the means of transport may affect the delivery assignments to be offered to the Service Provider. For this reason, changing the type of the means of transport used requires the Principal's prior written consent, which consent the Principal cannot unreasonably withhold or delay.

1.2 For the purposes of this Agreement, "**Services**" shall comprise the delivery of a variety of items primarily based on orders placed by the customers of the Principal (or by the customers of the Principal's Affiliates) or by the customers of the Principal's (or its

Affiliates') partners such as restaurants, shops, or online stores. The items to be delivered hereunder may include, but are not limited to, food and beverages, groceries, office supplies, convenience store items, electronics, medicine, flowers, and artwork.

- 1.3 The Principal may offer the Service Provider delivery assignments on a case-by-case basis in its sole discretion during such times when the Service Provider is considered to be available for such assignments. The Service Provider may always choose not to accept such offered assignments. Correspondingly, the Principal is not obligated to offer a specific quantity of delivery assignments to the Service Provider.
- 1.4 The Service Provider undertakes, when carrying out the Services, (a) to comply with applicable laws and regulations (b) to comply with and keep in force all permits, licenses, authorizations, registrations and insurances required under applicable laws for the procurement of the Services as set out in more detail in section 6.
- 1.5 The Service Provider shall provide the Services in accordance with best industry practices and standards, using the highest standard of care, skill and diligence befitting a professional provider of services.

2 SUBCONTRACTING NATURE

- 2.1 The Services are provided by the Service Provider to the Principal as an independent subcontractor. For the avoidance of any doubt, it is the Parties' mutual intention that this Agreement shall under no circumstances be understood to comprise an employment contract and that the nature of the relationship between the Parties shall under no circumstances be understood to be an employment relationship.
- 2.2 The Service Provider is not obligated to perform the Services personally and is free to use subcontractors or its own employees, if any (each a "**Substitute**"), for the procurement of the Services. However, the Service Provider shall always be liable towards the Principal for the fulfilment of the obligations hereunder as a Party to this Agreement even when using a Substitute. The Service Provider shall without delay give sufficient and appropriate information and documents to the Principal on the use of a Substitute that are necessary for the Principal to (i) assess whether or not the Finnish Act on Contractor's Obligations and Liability when Work is Contracted Out (1233/2006, as amended; in Finnish: *laki tilaajan selvitysvastuusta ja vastuusta ulkopuolista työvoimaa käytettäessä*) or other mandatory laws apply on the Principal in relation to the Service Provider when it uses a Substitute and (ii) fulfil its obligations under said mandatory laws.
- 2.3 The Service Provider shall procure the Services independently of the Principal by using its own or its Substitutes' professional expertise, know-how, methods, devices and equipment, and is responsible for the technical compatibility and any costs in relation to the use of applications, information systems and other services of the Principal used for the purpose of relaying delivery assignments or otherwise in connection with providing the Services. Any routes possibly suggested by the Principal's applications for the purpose of completing the assignments are suggestions only and the Service Provider is always free to choose the route for making its way to the pick-up point and from the pick-up point to the drop-off point.

3 NON-EXCLUSIVITY

The Service Provider is free to provide services similar to the Services to third parties, including but not limited to the Principal's or its Affiliates' competitors and to conduct other business.

4 SERVICE FEE; COSTS

- 4.1 The Principal pays the Service Provider a fee for the Services (the "**Service Fee**"). The Service Fee offered by the Principal for a given delivery assignment will be communicated by the Principal to the Service Provider when the Principal offers such assignment to the Service Provider. If the Service Provider accepts the assignment, the Principal shall pay the applicable Service Fee for the completion of the assignment.
- 4.2 The Principal has the right to deduct the value of the items in a given delivery from any Service Fees upon a customer complaint if the items are damaged in transit, the customer does not receive the items, or in other cases of notably inadequate service quality.
- 4.3 If the Service Provider invoices the Principal, such invoices shall be issued monthly in arrears subject to a payment period of at least 14 days to a SEPA bank account designated by the Service Provider. Such invoices shall comply with applicable laws and regulations and any erroneous or inadequate invoices will be rejected by the Principal.
- 4.4 If the Service Provider operates under a tax card, the Service Fee is paid on the tenth (10th) day for the preceding calendar month to a SEPA bank account designated by the Service Provider. The completed delivery assignments forming the basis for the Service Fee are based on monthly reports on assignments carried out by the Service Provider from the Principal's delivery management system. Any reclamations to such reports shall be made at the latest five (5) business days prior to the date of the payment of the Service Fee. As applicable, basic income tax will be withheld from the Service Fee if the Service Provider is not registered with the prepayment register. If the Service Provider operates under a tax card but has not provided the Service Provider with a valid tax card at the latest ten (10) days prior to the date of the payment of the Service Fee, the Principal will withhold tax at the rate of 60%.
- 4.5 If the Service Provider is registered with the value added tax register, the Service Provider shall have the right to add VAT to the part of the Service Fee subject to VAT. To the extent the Service Provider is deemed to have wrongly charged VAT for its Services in the event of an employment relationship being deemed to exist with the Principal (regardless of the fact that it is the Parties' mutual intention that this Agreement shall under no circumstances be understood to comprise an employment contract and that the nature of the relationship between the Parties shall under no circumstances be understood to be an employment relationship), the Service Provider agrees to provide to the Principal a written commitment, as defined in section 50, subsection 2 of the Finnish Act on Tax Assessment for Self-Assessed Taxes (768/2016, as amended), in which the Service Provider agrees not to request for VAT refund from the tax authority for the wrongly charged VAT.
- 4.6 The payment of the Service Fee shall be the sole and exclusive obligation of the Principal to compensate the Service Provider for the Services and shall be considered to cover the

procurement of the Services as well as the costs and expenses incurred by the Service Provider in relation to the procurement of the Services. The Service Provider shall be liable for all costs and expenses arising from the performance of the Services, including any damage caused to third parties by the Service Provider or its Substitutes.

5 EQUIPMENT

5.1 The Service Provider shall be responsible for the equipment used for the procurement of the Services including, but not limited to, the means of transport, telecommunications, thermal bags, clothing, and safety gear ("**Equipment**"). For the avoidance of any doubt, the Service Provider shall also be responsible for all costs and expenses of the Equipment including but not limited to acquisition, maintenance, replacement, insurance and operating costs and taxes.

5.2 The Service Provider shall have the right to freely choose the Equipment provided that:

- (a) the Equipment is in good working order, fit and suitable for the purposes of the Services and in particular that cooked meals, food and beverages, groceries and similar products are always delivered in a clean insulated thermal bag in accordance with applicable food safety laws and regulations; and
- (b) the type of the means of transport used by the Service Provider is such as agreed and meets all safety requirements under applicable laws and regulations.

5.3 The Principal may from time to time offer certain Equipment for the Service Provider's use if requested by the Service Provider. The use of such Equipment is optional, but if the Service Provider chooses to take on such Equipment, the Equipment shall be returned to the Principal or its Affiliate upon the termination of this Agreement or upon the Service Provider otherwise than temporarily discontinuing the offering of the Services, in such condition as when received by the Service Provider, save for customary wear and tear. The deposit shall be returned by the Principal or its Affiliate to the Service Provider upon the returning of the Equipment after any faults in the Equipment have been accounted for by making corresponding deductions from the deposit based on the value of the Equipment from time to time. Alternatively, instead of charging a deposit, the Principal or its Affiliate may invoice the Service Provider for the value of the Equipment either not returned or returned in a condition not in line with the foregoing.

6 TERM AND TERMINATION

6.1 This Agreement shall enter into force upon it having been duly executed by both Parties.

6.2 This Agreement is in force until a further notice of 14 days. Any termination of this Agreement shall be made in writing.

6.3 In the event of a material breach of this Agreement by a Party, the other Party shall have the right to terminate this Agreement with immediate effect. Without limitation to the generality of the foregoing, the Principal may always terminate this Agreement with immediate effect if the Service Provider or its Substitute as applicable, (i) does not hold a permit, license, authorization, registration or insurance policy required hereunder or under applicable laws, (ii) has compromised food safety for instance by not using a thermal bag, (iii) has shown disregard of traffic rules, (iv) has been subject to materially negative or

frequent negative feedback from customers or other partners of the Principal or its Affiliates, (v) has behaved in an inappropriate manner (such as harassment, bullying, abusive, or intimidating behavior) towards any of the Principal's or its Affiliates' employees, customers or other partners, (vi) has provided Services the quality of which materially falls short of a reasonably acceptable service level, (vi) has allowed a third party (other than a Substitute) to access the Service Provider's account.

7 PERMITS, LICENSES AND REGISTRATIONS; INSURANCE

7.1 General

7.2 The Service Provider shall be liable for all entrepreneurial obligations such as to obtain and/or hold any and all permits, licenses (including valid driver's licenses, as applicable), authorizations, registrations and insurances required under applicable law for the procurement of the Services including but not limited to in relation to the means of transport used.

7.3 The Principal shall have the right to require the Service Provider to provide evidence of the Service Provider having complied with the provisions of this section 6.

7.4 Insurances

7.4.1 The Service Provider shall be liable for any and all insurance coverage required under applicable law for the procurement of the Services, such as pension insurance.

7.5 The Service Provider shall further be liable for ensuring that it is also otherwise sufficiently insured in order to carry out the Services including but not limited to the Service Provider having taken out a sufficient third party liability insurance policy for the commercial use of the means of transport used by the Service Provider with coverage for any accidents potentially occurring while performing the Services.

7.6 Residence Permits

7.7 The Principal may require that the Service Provider, and any Substitute carrying out the Services on behalf of the Service Provider, has a valid residence permit in Finland, in case the Service Provider or Substitute has a nationality that requires such permit in order to carry out the Services, and that copies of such permits are provided to the Principal. The residence permits shall be applicable to the Services, i.e., allowing the procurement of the Services.

7.8 If legally required by the Principal, upon the expiry of a residence permit of the Service Provider or its Substitute, the Service Provider shall immediately discontinue the procurement of the Services or discontinue the use of such Substitute for the procurement of the Services, as applicable, provided that the Service Provider or Substitute, as applicable, has not applied for a renewal of a residence permit allowing the Service Provider or Substitute to continue the procurement of the Services.

7.9 If legally required by the Principal, the Service Provider shall without delay inform the Principal of any changes to, or the expiry of, the residence permit(s) of the Service Provider or its Substitutes, and of the Service Provider or its Substitutes having applied for a renewal of a residence permit.

8 CERTAIN UNDERTAKINGS

- 8.1 The Service Provider is responsible for the appropriate use of their user account of the Principal's applications. The Service Provider shall keep the user-specific credentials confidential and not accessible to third parties other than to its Substitutes, as necessary. Where it is suspected that a third party has unauthorized access to the user account of the Service Provider, the Service Provider shall immediately inform the Principal thereof.
- 8.2 When delivering alcoholic beverages or other age-restricted items, the Service Provider shall before hand-over verify the customer's age from a valid identity document if there is any suspicion of the user being younger than the legally required age for such item. If the customer refuses or fails to evidence their identity and age or if it is evident that the user is underage or intoxicated, the Service Provider shall hold the hand-over of the age-restricted items to the customer and contact the Principal.

9 THIRD PARTY CODE OF CONDUCT

- 9.1 The Principal, and the wider Delivery Hero group, is committed to operating responsibly. The Delivery Hero group, headquartered in Germany, is also committed to comply with its obligations under the German Supply Chain Act (in German: *Lieferkettensorgfaltspflichtengesetz*) which requires companies to monitor human rights and environmental risks in their supply chains. For this purpose, the Principal and its Affiliates have adopted a Third Party Code of Conduct, applicable globally to any external party (company or individual) contracted by any entity in the Delivery Hero group to provide services or goods. Third Party Code of Conduct is made available on Delivery Hero's website.
- 9.2 The Service Provider shall comply with such Third Party Code of Conduct in force from time to time, as applicable to the Services and the Service Provider. The Service Provider represents and warrants that it and its Substitutes, as applicable, have read, understand and agree with the Third Party Code of Conduct.

10 CONFIDENTIALITY

- 10.1 The Service Provider shall (i) keep all Confidential Information (as defined below) confidential and (ii) use Confidential Information only for the purposes of this Agreement. "**Confidential Information**" shall mean the contents of this Agreement and any other document related hereto, any other information received by the Service Provider that is identified or shall be deemed to be understood as confidential and any and all information of any kind whatsoever, whether written or oral, containing confidential or sensitive information, trade secrets and other proprietary business information regarding the Principal or its Affiliates (including, but not limited to, deliveries, orders and end customers in relation to the Principal, its Affiliates or its partners). The Service Provider shall, however, have the right to disclose Confidential Information to the extent required by applicable laws and regulations provided, however, that the Service Provider shall immediately notify the Principal in writing of such requirement to which the Service Provider is subject, prior to making such disclosure (where permitted).
- 10.2 The Service Provider shall ensure that its Substitutes, if any, are bound by confidentiality obligations equivalent to those agreed upon in section 10.1.

10.3 The obligations in sections 10.1 and 10.2 shall survive the termination of this Agreement.

11 INTELLECTUAL PROPERTY RIGHTS

11.1 Save for as set out in section 11.2, neither this Agreement, nor the Service Provider's use of the platform(s) and application(s) operated by the Principal or its Affiliates, shall be understood so as to grant the Service Provider any Intellectual Property rights (as defined below) in respect of the platform(s) and application(s) operated by the Principal or its Affiliates from time to time and all rights not expressly granted hereunder are reserved by the Principal or its Affiliates and the subcontractors and licensors of the Principal and its Affiliates, as applicable. **"Intellectual Property Rights"** shall mean copyrights and related rights, patents, utility models, design rights, trademarks, trade names, logos, trade secrets, know-how and any other form of registered and unregistered intellectual property rights.

11.2 Subject to the Service Provider's compliance with this Agreement, the Principal and/or its Affiliates, as applicable, grant the Service Provider a non-exclusive, non-sub-licensable, revocable, non-transferrable, non-delegable (in each case other than in relation to its Substitutes, as necessary), license to access and use the applications made available for the purposes of accepting assignments and solely with respect to the Services.

12 PERSONAL DATA

12.1 When providing Services under this Agreement, the Service Provider will have access to the Principal's customers' personal data, such as e.g., names, telephone numbers and addresses or other information provided by the Principal's customers to the Principal. The Service Provider shall process such personal data for the sole purpose of providing the Services to the Principal. In this context, the Service Provider accepts to not conduct any data processing of the Principal's customers' personal data outside of the delivery and logistics apps provided by the Principal. When processing personal data the Service Provider shall act as an independent controller and is solely responsible for acting in accordance with the EU General Data Protection Regulation 2016/679 (GDPR) and other applicable data protection legislation.

12.2 If the Service Provider is a natural person and qualifies as a data subject for the purposes of the GDPR, the Principal will be required to process the Service Provider's personal data for the purpose of administering the business relationship between the Parties. Information on the Principal's data processing practices as well as further information required by the GDPR is available in the Principal's privacy statement.

13 INDEMNIFICATION

The Service Provider shall be responsible for and shall indemnify, defend and hold the Principal, its Affiliates and their officers, directors, employees, and agents harmless from any and all claims, demands, losses, liabilities and expenses (including attorney's fees) arising out of or in connection with:

- (a) any claims, suits or actions arising out of or in connection with the Services or the performance of this Agreement;



- (b) the Service Provider's or its Substitutes' use of the platform(s) and application(s) of the Principal or its Affiliates;
- (c) the Service Provider's (or its Substitute's) breach of this Agreement (including, but not limited to, a breach of any representation, warranty, or obligation of the Service Provider set out herein) or any act, omission, or negligence of the Service Provider (or of its Substitute);
- (d) the Service Provider's or its Substitute's failure to comply with applicable laws and regulations; or
- (e) any claims, suits or actions relating to death, bodily or other injury, damage or loss to property arising out of, or in connection with the Services or the performance of this Agreement by the Service Provider or its Substitute.

14 OTHER TERMS

14.1 Provisions Severable

If any provision of this Agreement is determined to be invalid or unenforceable, such determination shall not affect the validity or enforceability of any other provision hereof. However, the Parties shall attempt, through negotiations in good faith, to replace any provision of this Agreement so determined to be invalid or unenforceable, failing which this Agreement shall be construed and interpreted so that its effect shall remain as close as legally possible to the effect it would have had without such invalidity or unenforceability. The failure of the Parties to reach an agreement on such replacement shall not affect the validity or enforceability of any other provisions of this Agreement.

14.2 Assignment

The Principal shall have the right to assign and transfer this Agreement or the rights and obligations under this Agreement to its Affiliates. The Service Provider shall not have the right to assign or transfer this Agreement without the prior written consent of the Principal.

14.3 Amendments

14.3.1 This Agreement shall supersede all prior agreements by and between the Parties concerning the Services or services substantially similar to the Services. Any amendments to this Agreement shall be made in writing.

14.4 The Principal shall have the right to make technical changes to this Agreement by giving reasonable written notice thereof to the Service Provider.

14.5 Further, the Principal shall have the right to make amendments to this Agreements that may not be deemed only technical subject to 14 days' written notice of such changes. The Service Provider shall have right to terminate this Agreement during such notice period to expire at the end of the notice period by giving written notice thereof to the Principal.

14.6 No Waiver

14.6.1 No waiver by either Party of any right or remedy under this Agreement shall be effective unless given in writing and executed by or on behalf of such Party. Except as otherwise

expressly provided in any such waiver, it shall only be a waiver in the particular instance and for the particular purpose for which it was given.

- 14.6.2 No failure or delay by either Party to exercise any right or remedy provided by law or under this Agreement shall operate as a waiver of the same or of some other right or remedy, nor shall any partial exercise thereof preclude any further exercise of the same or of some other right or remedy. The rights and remedies provided under this Agreement are cumulative and are not exclusive of any rights and remedies provided by law or otherwise.

14.7 Applicable Law and Dispute Resolution

- 14.7.1 This Agreement shall be governed by the laws of Finland without regard to its principles and rules of conflict of laws.

- 14.7.2 Any dispute, controversy or claim arising out of or relating to this Agreement, or the breach, termination or validity thereof, shall be finally settled by arbitration in accordance with the Rules for Expedited Arbitration of the Finland Chamber of Commerce. However, at the request of a Party, the Arbitration Institute of the Finland Chamber of Commerce may determine that the Arbitration Rules of the Finland Chamber of Commerce shall apply instead of the Rules for Expedited Arbitration, if the Arbitration Institute considers this to be appropriate taking into account the amount in dispute, the complexity of the case, and other relevant circumstances. The seat of arbitration shall be Helsinki, Finland and the language of the arbitration shall be English, unless the Parties agree on the language being Finnish.

- 14.7.3 Notwithstanding section 14.7.2, either Party may, before or during any legal proceedings, apply to a court having jurisdiction for a temporary restraining order or preliminary injunction where such relief is necessary to protect its interests pending completion of such proceedings.

14.8 No Breach

The Service Provider represents and warrants that it is not in breach (or in threat of being in breach) of any of its obligations hereunder upon entering into this Agreement.



DELIVERY HERO FINLAND LOGISTICS OY

Mujitha Manorathna Nawarathna Mudiyansele

Date: 11/10/2024

Nawarathna Mudiyansele Mujitha Manorathna

Ida Wallden

Date: 14/10/2024